

[doc. web n. 10107146]
Provision of December 12, 2024
Register of provisions
n. 772 of December 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code on the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree June 30, 2003, n. 196, as amended by Legislative Decree August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint filed pursuant to Article 77 of the Regulation by Mr. XX against Hotel Petrarca s.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint against the Company and the investigative activity.

Following the submission of a complaint by Mr. XX against Hotel Petrarca s.r.l. (hereinafter, the Company), the Authority delegated the Special Privacy and Technological Fraud Protection Unit to carry out the inspection, which was conducted on January 4, 2022, at the Company, where the presence of 3 operational video surveillance systems was confirmed at its premises.

During the inspection, the Company, through the Hotel Manager and the privacy consultant (see minutes of operations completed 01/04/2022), stated that:

- a. "the cameras subject to the report were installed for security reasons; there have been several thefts over time" (see minutes of operations completed cited, 01/04/2022, p. 2);
- b. "the data controller for personal data through the video surveillance system, referred to in the report [...], is Hotel Petrarca s.r.l." (see minutes of operations completed cited, p. 3);
- c. "regarding the number of cameras, their positioning, the field of view, and any recording of images and retention times, neither I nor the consultant present here are able to provide precise information, nor do we have floor plans and/or other documentation that could indicate such data; in this regard, we can assert that the system records images and that they are stored for 48 hours; [...] the company M.P. Security s.n.c. [...] is responsible for the maintenance and management of the system and is the only entity authorized to access the recorded images" (see minutes of operations completed cited, p. 3);
- d. "concerning the information notice related to the video surveillance system in question, various types of informational signs have been placed around the structure and at the entrances to the monitored areas" (see minutes of operations completed cited, p. 3);
- e. "[the Company] provides the information on the processing of personal data [...], available to customers, in which, under the section 'methods of processing,' various personal data processed are reported, including those related to the surveillance cameras; the processing in question has not yet been included among those in the register of processing activities, but it will soon be included based on the specific risk analysis that will be formulated; [...] the video surveillance system is mentioned among the security measures adopted to protect all personal data processed by the Hotel, both in the

register of processing activities and in the document – privacy by design: risk analysis and measures adopted" (see minutes of operations completed cited, p. 3);

f. the minutes note that "during the movement towards the back office, [the presence of a television was] noted, placed in front of the reception and visible to customers, on which the images reproduced by nine cameras are displayed" (see minutes of operations completed cited, p. 4);

g. M.P. Security s.n.c. clarified that "the video surveillance system installed at the Hotel actually consists of three different video surveillance systems, each equipped with its own NVR connected to cameras, and respectively protects the external area (entrances and parking lots), the pools (indoor and outdoor), and the changing rooms; the images are recorded and stored for 48 hours on the aforementioned NVRs, kept in a metal cabinet located in the back office; access to the aforementioned NVRs is allowed exclusively to the undersigned, using the same ADMIN account (same username and password), through a dedicated intranet connection to the system; this network is different from those used for other services of the Hotel; the images displayed on the television are the only ones visible in real time and are available via a direct HDMI connection to the NVR related to the external areas" (see minutes of operations completed cited, p. 4);

h. from the accesses to the three NVRs "the following results were obtained:

- "'external area (entrances and parking lots)' - the system consists of twenty-one color cameras, with fixed focal length and with recording and capturing capabilities, including at night, whose definition allows for recognizing individuals as well as reading the license plates of the vehicles captured; the camera monitoring one of the entrances,

the context of the GDPR";

- "Documentation regarding the appointment of the Data Protection Officer (DPO) as per Article 37 of the GDPR";

- "Records of training sessions provided to employees regarding data protection and privacy policies";

- "Updated procedures for handling data breaches and reporting mechanisms";

- "Evidence of communication with employees regarding their rights under the GDPR";

- "Records of consent obtained from employees for the processing of their personal data";

- "Documentation of the privacy impact assessment conducted for the surveillance system";

- "Updated policies regarding data retention and deletion procedures";

- "Records of audits conducted on the surveillance system and data processing activities";

- "Documentation of measures taken to ensure the security of personal data processed by the surveillance system";

- "Records of any complaints or inquiries received regarding the surveillance system and how they were addressed";

- "Updated privacy notices provided to clients and visitors regarding the surveillance system and data processing activities";

- "Documentation of the technical and organizational measures implemented to protect personal data processed by the surveillance system";

- "Records of any third-party service providers involved in the processing of personal data and the agreements in place with them";

- "Evidence of ongoing monitoring and review of the surveillance system and data processing activities to ensure compliance with applicable laws and regulations."

Application of Article 28 of the GDPR;

- ***"Updated Information on the Data Processing of Employees"***;

- ***"Updated Information on the Data Processing of Video Surveillance, available to each individual user or customer of the hotel facility."***

On January 17, 2022, the Company sent photographic documentation regarding the "new positioning

of the surveillance cameras, with images of the swimming pool changing rooms, cleared of all benches and chairs.”

On January 20, 2022, the Company provided a copy of the request for authorization for the installation of audiovisual systems, submitted on January 12, 2022, pursuant to Article 4 of Law No. 300 of May 20, 1970, to the Territorial Labor Inspectorate – Padua office.

****2. The initiation of the procedure and the Company's defenses.****

On May 16, 2022, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 5, paragraph 1, letters a), c), 6, 13, 30, 88 of the Regulation and 114 of the Code, pursuant to Article 166, paragraph 5, of the Code.

On June 7, 2022, the Company submitted its defense writings and on that occasion highlighted that:

- “In both the male and female changing rooms, there are small rooms designated as changing rooms, for putting on swimsuits to proceed to the swimming pool areas. As with all access to any swimming pool, changing clothes and putting on swimsuits must be done in the areas indicated by the Management of the Thermal Hotel; the [complainant] stated that he changed clothes into a swimsuit in the changing rooms, in front of the cabins where locked lockers are also located for storing belongings including documents and wallets, violated a usage procedure and therefore an act not pertinent to the areas adjacent to the internal and external thermal pools. As can be seen from the layout of the camera placements, both from the attached photos [...], the small rooms are not under camera surveillance, while [in other] photos [...] it is evident that surveillance recording is taking place” (see defense writings of 06/07/2022 cited, p. 1);

- “From the [complaint], it is essentially highlighted the statement of the [complainant] regarding the absence of signs indicating video surveillance. The signs were actually present, but [...], during the inspection visit on 01/04/2022, the identification data of the data controller and the purposes of processing were missing. Therefore, [the complaint] was not entirely accurate in the expressed form, although we accept the incompleteness of the video surveillance sign” (see defense writings cited, p. 2);

- “During the check carried out by the officials of the Guardia di Finanza, both the updated register of processing and the privacy by design and by default document were delivered [...] by the data controller, assisted throughout by the data processing manager and the DPO appointed by the same controller; this document indicates which security measures have been adopted and in detail the existence of surveillance cameras concerning the external perimeter to ensure the safety of customers and guests of the hotel and internally regarding the male and female swimming pool areas and the adjacent changing rooms” (see defense writings cited, p. 2);

- “In the defensive memory sent to the Guardia di Finanza [...] on January 14, 2022, this company expressly repositioned both the cameras concerning the male and female changing rooms [...]. [...] the cabins located in the entrance areas to the male and female swimming pools are not captured by any camera, and therefore the principle of lawful, relevant, and minimized processing has been applied, which does not infringe on the dignity of the person. The areas where the lockers for personal belongings are located are captured. Such recordings are also requested by the judicial authority such as Carabinieri and Police Forces, which have intervened numerous times following thefts by unknown individuals who force the lockers and rob the customers of the facility present at that moment.

Following some video interrogations by the same law enforcement agencies, it was possible to identify and arrest the thief captured [...] in order to copy the images and initiate investigative proceedings” (see defense writings cited, p. 2);

- “The cameras capture many areas designated as changing rooms for people entering the swimming pools. Let us not forget the Hotel Termale Petrarca, in its capacity as a treatment facility for people also subject to disabilities, mobility issues, and individuals requiring thermal treatments, who are nonetheless guests of the hotel undergoing health treatments such as mud therapy, balneotherapy, and inhalations. While undergoing these therapeutic treatments, it is sometimes necessary to have the surveillance cameras operational, as staff must promptly intervene in the areas if someone were to faint or worse, call in medical personnel from local hospitals for assistance, both for serious respiratory/circulatory dysfunctions and due to accidents caused by the conditions of the premises

being damp and slippery. In fact, [...] the images are minimized and deleted within 48 hours. This is also noted on the signs posted at the entrance of each department of the hotel; these signs are intended to apply in accordance with Article 5, letter a, the principles of lawfulness, fairness, and transparency and are adequate and relevant as indicated in letter c" (see defense writings cited, p. 3);

- "It must be acknowledged, however, the intention and application, after inspection verification, where all measures requested by both the inspection authority and the Labor Inspectorate have been adopted, which issued suitable certification [...] for the application of all video cameras both external and internal of the Hotel Petrarca" (see cited defensive writings, p. 3);
- "based on the application of Article 30 of the European Regulation, the register of processing activities was presented at the request of the intervening Control Authority, and it was found to be updated as of January 6, 2022" (see cited defensive writings, p. 3);
- "the information notice in application of Articles 13 and 14 of the same Regulation has also been updated and delivered both to employees currently working; regarding the processing of personal data of guests and/or occasional daily customers, it is provided by the reception staff at the time of check-in and/or daily entry to the pools, a complete notice in which the registration of surveillance video cameras in all perimeters of our company, both external and internal, is noted" (see cited defensive writings, p. 3);
- regarding the "initiatives undertaken by the company post-inspection verification" "1 a. request to the Labor Inspectorate, Padua office, for the overall authorization of the installation of surveillance cameras. Authorization granted. 1 b. Integration of the register of processing activities, in accordance with Article 30 of the European Regulation, for data processing via surveillance cameras, duration and deletion of recordings. Consequently, the Company Organizational Chart Register has also been updated, in which both individual employees are described detailing which data they have access to, and for each individual data whether they have the right to write, modify, delete, and disseminate. 1 c. installation of signs in compliance with [...] indicating surveillance video recordings at both external access points and access to all areas of the accommodation facility, indicating the designated data processing manager, and the period of recording and storage. 1 d. Update of the information document, with application and expression of the rights of the data subject, in application pursuant to Articles 13 and 14 of the European Regulation, concerning the processing of data of employees and collaborators, as well as of the individual customer accessing the hotel facility; in such notices, the automated processing with surveillance cameras and the related storage and conservation time has been expressly included. 1 e. The privacy by design and default document has been updated (risk analysis and measures adopted) also in relation to Article 32 Data Security, and especially Article 35 to mitigate the damage suffered by the data subjects. 1 f. The appointment letters for data processing officers have been updated for all employees and collaborators who process data also in relation to surveillance cameras. Especially the employees operating in the Reception area and issuing entry tickets to facilities such as pools, water slides, internal gym. Through a monitor placed in front of the Reception, they can view the external driveways of the Hotel Petrarca, to monitor especially during nighttime the entries to the perimeter of the company itself. This monitor does not record any footage" (see cited defensive writings, pp. 3, 4);
- "the Hotel Petrarca aims and core business is to guarantee the highest level of quality and at the same time hospitality, service, care, and attention for each individual guest. It is unthinkable not to take into account such a level of hospitality quality; therefore, to defend the very name of our company, measures must be implemented to prevent the degradation of such service offered. For this reason, the data controller together with the data processing manager has implemented a video surveillance system, aimed at preventing damage to the property present and especially to avoid suffering thefts directed at the goods of their customers" (see cited defensive writings, p. 4);
- "we send reports to the judicial authority of the Carabinieri made by the individuals involved in such criminal acts, since January after the inspection visit of the Guardia di Finanza, to certify thefts perpetrated by unknown individuals of several valuables belonging to hotel guests, including cash, watches, rings, and significant personal belongings such as the theft of credit and debit cards. Such thefts are harmful to the protection of the company's good name and damage to its reputation; [...] they also create significant economic damage" (see cited defensive writings, p. 4);

- “we trust that we have undertaken a positive path of compliance with the European Regulation and Legislative Decree 101/2018” (see cited defensive writings, p. 5).

3. Outcome of the procedure.

3.1 Established facts and observations on the regulations regarding personal data protection.

The processing of personal data carried out within the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles 6, paragraph 1, letter c); 9, paragraph 2, letter b) of the Regulation), must take place in compliance with the general principles indicated by Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it is in accordance with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation). Consistent with this approach, Article 88 of the Regulation has preserved national norms of greater protection (“more specific norms”) aimed at ensuring the protection of the rights and freedoms regarding the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The processing must also be carried out in accordance with the principles of fairness and transparency (Article 5, paragraph 1, letter a) of the Regulation). Within the employment relationship, the obligation to inform the employee is also an expression of the general principle of fairness (see Article 5, paragraph 1, letter a) of the Regulation). The processing of personal data must therefore be carried out in compliance with the principle of data minimization, as the personal data processed must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (Article 5, paragraph 1, letter c) of the Regulation).

With the general provision on video surveillance, adopted by this Authority on April 8, 2010 (web document No. 1712680 on www.garanteprivacy.it), compatible with the Regulation and with Guidelines No. 3/2019 on the processing of personal data, adopted by the EDPB on January 29, 2020, detailed indications were provided for the correct processing of personal data related to the installation of video surveillance systems by private individuals, condominium associations, economic operators, and public institutions.

Article 30 of the Regulation states that the data controller must keep “a record of processing activities carried out under its responsibility” containing the information listed in the same article.

3.2 Established Violations.

Based on the elements acquired during the investigation as well as subsequent evaluations by the Office, it has been established that the Company has carried out processing of personal data, through video surveillance systems, in violation of personal data protection regulations: it has not adopted an appropriate information notice, has not activated, prior to the use of the aforementioned systems, the guarantee procedure referred to in Article 4, paragraph 1 of Law No. 300 of 1970, has installed numerous cameras in the changing rooms for customers and one in the changing room reserved for workers – the latter camera, among other things, installed in such a way as to be unnoticeable to the interested parties, was positioned to directly capture the device used for recording attendance at work.

Furthermore, the Company had not updated (at least until the submission of a copy of it on January 13, 2022) the record of processing activities, with information relating to the processing of data of customers and workers carried out through the installed video surveillance systems. In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor.”

3.2.1 Violation of Articles 5, paragraph 1, letter a), and 13 of the Regulation.

It has emerged that the Company has carried out processing of personal data, through video surveillance systems, capturing areas where the work activity of employees is carried out and where customers of the facility are present, without having adopted an appropriate information notice. In particular, regarding the camera installed in the changing room reserved for employees, it has been established that it was not indicated by any notice; this aspect is particularly relevant considering that,

as evidenced by the documents, it was concealed (see paragraph 3.2.4.).

It is specified in this regard that even in the information provided to employees and exhibited by the Company (see Annex 12 to the minutes of operations carried out on 01/04/2022) there is no reference to the video surveillance carried out at its premises (unlike what is contained in the general information prepared for customers, in which at least there was an indication, in the section dedicated to "methods of processing," that data may also be processed through "surveillance cameras for access control and prevention of incidents and requests for medical assistance in pools and changing rooms of the accommodation facility," see Annex 1 to the minutes of operations carried out on 01/04/2024).

Moreover, during the inspection, the presence of "various categories of informational signs" was established in the areas accessed by customers and employees; some of these were complete with the information required by law, while others were missing the indication of the identifying data of the data controller and the purposes pursued.

In this regard, it is noted that, subsequent to the inspection, the Company has modified the informational signs that did not contain all the required information, thus making them compliant with data protection regulations. It is also noted that, subsequent to the inspection, the party indicated, in the information extended to employees, the description of the processing of personal data carried out through the video surveillance system (see Annex 10 to the supplementary documentation of 01/14/2022).

Regulation establishes specific conditions under which personal data processing may occur in the workplace, emphasizing the necessity of compliance with sector-specific regulations.

3.2.2 Violation of Articles 5, Paragraph 1, Letter a) and 88 of the Regulation and Article 114 of the Code.

During the investigation, it was also noted that the Company, through the video surveillance systems installed at its premises, recorded the work activities of its employees without having carried out the guarantee procedures required by Article 4 of Law No. 300 of 1970, as referenced by Article 114 of the Code.

In particular, it was established that the Company used, without activating the required guarantee procedure, video surveillance systems that recorded for 48 hours external areas (access to the structure and parking lots), both covered and uncovered swimming pools, and changing rooms, both for customers and for employees (see minutes of operations carried out on 01/04/2022, p. 4), where, among other things, the employees of the Company transit and carry out their work activities.

In this regard, the Authority has consistently held that even areas where employees transit or stay—sometimes continuously (e.g., access to the structure and garages, loading/unloading zones, vehicle and pedestrian entrances)—when subjected to video surveillance, are subject to the full application of the regulations concerning the protection of personal data (see, among others, provisions of September 16, 2021, No. 331, web document No. 9719768; July 30, 2015, No. 455, web document No. 4261028; July 4, 2013, No. 334, web document No. 2577203; April 18, 2013, Nos. 199 and 200, web document No. 2483269; February 9, 2012, No. 56, web document No. 188699; November 17, 2011, No. 434, web document No. 1859558; February 26, 2009, web document No. 1601522).

This is in accordance with what has been established by the jurisprudence of legitimacy (see Cass. March 6, 1986, No. 1490; see also, with reference to a tool other than video surveillance, Cass. March 13, 2007, No. 15892).

In this case, the video recording system is positioned to also capture areas where, precisely, employees necessarily transit to carry out their work activities (entrances, parking) or to access areas dedicated to them (changing room).

The processing of personal data carried out within the employment relationship, if necessary for the purpose of managing that relationship (see Articles 6, Paragraph 1, Letter c); 9, Paragraph 2, Letter b) of the Regulation), must take place in compliance with the general principles indicated by Article 5 of the Regulation, and in particular with the principle of lawfulness, according to which processing is lawful if it complies with applicable sector regulations (Article 5, Paragraph 1, Letter a) of the

Regulation).

Consistent with this approach, Article 88 of the Regulation establishes specific conditions under which personal data processing may occur in the workplace, emphasizing the necessity of compliance with sector-specific regulations.

****Regulation**** has preserved national provisions of greater protection (“more specific provisions”) aimed at ensuring the protection of the rights and freedoms concerning the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of the aforementioned Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

Based on the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they also entail “the possibility of remote control” of employees' activities, “may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets,” and their installation must, in any case, be carried out following the stipulation of a collective agreement with the unitary trade union representation or with the company trade union representatives or, if it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal sanctions (see Article 171 of the Code).

Only on January 12, 2022, the Company submitted a request for authorization to the Labor Inspectorate, supplemented on March 28, 2022, following a request from the Inspectorate, which on April 5, 2022, issued the aforementioned authorization. In the supplement to the authorization request, the Company stated, among other things, that “the cameras, post-authorization issued by this institute, will not be positioned in the changing rooms designated for changing into swimsuits, nor in the locker rooms preceding those changing rooms, where there are hundreds of lockers with locks. Being a public place, and with a numerically significant influx of people (on holidays, there are even 400-500 attendees per day).”

In the cited authorization, it is stated, among other things, that “the equipment will exclusively frame the parts of the premises most exposed to the risk of one or more of the ‘reasons’ mentioned above [protection of company assets] and from which the possibility of remote control of workers will derive entirely accidentally and occasionally. The cameras will not capture areas reserved exclusively for employees (changing rooms, restrooms, cafeteria...).”

In light of the above, the conduct of the Company was not compliant, until the issuance of the authorization by the Labor Inspectorate, with the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Article 114 of the Code) and with Article 88 of the Regulation, as Article 114 of the Code falls among the provisions of national law “more specific to ensure the protection of the rights and freedoms concerning the processing of personal data of employees within the scope of employment relationships” identified by Article 88 of the Regulation.

It is recalled that pursuant to Article 2-decies of the Code “personal data processed in violation of the relevant regulations on the processing of personal data may not be used.” It is also noted that, following the issuance of the authorization pursuant to Article 4 of Law No. 300 of 1970 by the Labor Inspectorate, the data controller-employer must process the data in accordance with what is provided in the authorization itself. Deviating from what is contained in the authorization, in fact, results in a violation of the aforementioned Article 4, leading to the unlawfulness of the data processing.

****3.2.3 Violation of Article 5, paragraph 1, letters a) and c) of the Regulation.****

It has also been established that numerous cameras of the video surveillance systems used by the Company have been installed in the premises designated as changing rooms for customers, and one

of these, also in the changing room reserved for workers, thus infringing the privacy and dignity of the individuals using the aforementioned changing rooms; these latter, in fact, are places, by their nature, characterized by a particular expectation of privacy and protection of the intimacy and dignity of the person, also in light of the current provisions of civil and criminal law (see Provision No. 357 of July 10, 2014, web doc No. 3325380; the harmfulness of the use of continuously operating cameras in changing rooms has also been emphasized in the Provision of 12/4/2008, web doc No. 1576125, in which it is particularly specified that “the placement of continuously operating cameras in the changing rooms of a medical office constitutes, in the specific case, an unjustified intrusion into the private life of the individuals who go there and is, therefore, harmful to their privacy and dignity”).

Regarding the installation of video surveillance systems in changing room premises, as has already been highlighted in the past by the Guarantor, based on the principle of minimization (Article 5, paragraph 1, letter c) of the Regulation, “personal data are [...] adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed,” a principle already provided for by the previous Article 11, paragraph 1, letter d) of the Code), video surveillance systems can be used legitimately for the protection of property, eventually resuming areas designated for changing rooms, but adopting in any case suitable technical measures aimed at inhibiting improper recordings of individuals while using the changing rooms” (Provision of March 8, 2007, web document no. 1391803, point 2.3.).

The processing of personal data, within premises such as changing rooms, is therefore excessively invasive and in violation of the privacy and dignity of the individuals using the premises.

With reference to the specific case, it is noted that, as evidenced by the images acquired during the investigations, the cameras that frame the lockers present in the customers' changing rooms are, in relation to the angle of view and the width of the field of recording, suitable for capturing the individuals who use them, regardless of the removal that the Company claims to have carried out following the inspection of the “benches provided for temporarily placing personal belongings to be stored in the lockers”; during the inspection, the benches were still present within the field of view of the aforementioned cameras.

Nor has the Company adequately represented the ineffectiveness of adopting other measures to prevent incidents of break-ins to the lockers present in the changing rooms.

The conduct carried out by the Company is therefore in contrast with the data protection regulations as it violates the principles of lawfulness and data minimization (art. 5, par. 1, lett. a) and c) of the Regulation).

3.2.4 Violation of regulations regarding the camera installed in the employees' changing room.

It has also been established that the camera installed by the Company inside the employees' changing room was positioned in such a way as to directly capture the device used by workers to record their presence at work.

Moreover, it was placed “inside a box which was in turn positioned inside a technical locker containing wiring” and therefore, considering its location, its presence was not perceivable by the individuals concerned.

The processing thus carried out was therefore found to be non-compliant with the data protection regulations as the recordings were made through a concealed camera, in violation of the principle of fairness (art. 5, par. 1, lett. a) of the Regulation) and in the absence of a valid condition of lawfulness of the processing (art. 6 of the Regulation for so-called common data): the processing of personal data through video surveillance systems in the workplace, in general terms, finds its regulation in the aforementioned article 4 of law no. 300/1970, as a result, as mentioned, of the reference made to it by the text of art. 114 of the Code and by art. 88, par. 2, of the Regulation.

Furthermore, the installation of a camera, among other things of a concealed nature, that captured the presence detector does not fall within the exception provided for in paragraph 2 of art. 4 of law no. 300

of 1970: by express legislative provision, in fact, only the preordained instruments, also due to the technical characteristics of configuration, for the “recording of accesses and presences” (or for the “performance of the service”) are not subject to the limits and guarantees of which the first paragraph of the aforementioned art. 4 refers.

Such instruments are indeed only those strictly functional to allow the fulfillment of obligations that directly arise from the employment contract, that is, presence at work and execution of the work performance (accessing/allowing access to workplaces and performing work activity).

In particular, the installation of cameras oriented towards the presence detection systems instead configures a form of direct and systematic control of work activity, specifically of compliance with the diligence duties established for the respect of working hours within the correct execution of work performance.

For these reasons, even following the amendments made to law May 20, 1970, no. 300, by art. 23 of legislative decree no. 151/2015, direct and targeted control over work activity is not currently permitted by the legal system and the constitutional framework, in addition to not being able to be framed within the exhaustive purposes (“organizational and productive”, “work safety” and “protection of company assets”) for which such systems can be lawfully employed, based on the aforementioned sector regulations (considerations 4 and arts. 5 and 88, par. 2, Regulation; arts. 114 of the Code and 4, law May 20, 1970, no. 300).

In light of this, even any information provided regarding the presence of cameras oriented towards the presence detector would not eliminate the unlawfulness of the processing concerning this conduct for violation of arts. 5, par. 1, lett. a), 6, 88 of the Regulation and 114 of the Code.

The installation of the aforementioned camera was also found to exceed the purposes intended to be pursued (detection of presence at work and calculation of working hours), even from the perspective of the graduality of the restrictive measures that can be adopted towards workers.

This conduct, in particular, does not respect the principle of proportionality and data minimization as the simultaneous use of the badge and...

of the administrative sanction, the Authority has taken into account the following factors:

1. The nature, gravity, and duration of the infringement, taking into consideration the nature, subject matter, or purpose of the processing in question, as well as the number of data subjects affected by the damage and the level of damage suffered.
2. The intentional or negligent character of the infringement.
3. Any relevant previous infringements by the data controller.
4. The degree of responsibility of the data controller, taking into account technical and organizational measures implemented by the data controller.
5. Any relevant mitigating or aggravating factors, such as financial benefits gained or losses avoided, directly or indirectly, from the infringement.

In light of the above considerations, the Authority deems it necessary to impose an administrative monetary sanction on Hotel Petrarca s.r.l. for the violations identified, ensuring that the amount reflects the seriousness of the infringement while adhering to the limits set forth in the applicable regulations.

6. Final provisions.

The Authority reserves the right to take further action as necessary to ensure compliance with the Regulation and to protect the rights of data subjects. The data controller is required to implement corrective measures promptly and to report back to the Authority on the actions taken to address the identified issues.

This decision is subject to appeal in accordance with the applicable legal provisions. The data controller has the right to challenge this decision before the competent judicial authority within the time limits established by law.

The Authority will monitor the situation to ensure that the necessary changes are made and that the

rights of data subjects are upheld.

of the administrative monetary sanction and its related quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (art. 83, par. 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account:

1. the significant severity of the violation, as it involved cases punished more severely due to the interest protected by the violated norms (concerning general principles and the regulation of so-called remote monitoring); moreover, the installation of a hidden camera in the workers' changing room highlights the high level of the violation;
2. the considerable number of affected individuals involved, given the number of employees of the Company and the people who have frequented the premises subject to video surveillance, considering the receptive nature of the structure;
3. with reference to the intentional or negligent nature of the violation and the degree of responsibility of the owner, the objective elements of the Company's conduct and its degree of responsibility have been considered, as it violated the duty of diligence required by the legal system and did not comply with the regulations on data protection, concerning multiple provisions; in particular, the installation of a hidden camera in the workers' changing room highlights the intentional nature of the violation;
4. in favor of the Company, the activities carried out by it following the ascertainment have been taken into account, including the activation of the guarantee procedure referred to in art. 4 of law no. 300 of 1970, which concluded with the issuance of authorization by the Labor Inspectorate.

It is also believed that the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the financial statements for the year 2023 (the latest available), are relevant in this case, in light of the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation).

In light of the above elements and the evaluations made, it is deemed appropriate, in this case, to apply to Hotel Petrarca s.r.l. the administrative sanction of payment of an amount equal to 40,000 euros (forty thousand/00).

In this context, it is also believed that, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed.

This is in consideration of the concrete characteristics of the case under consideration, particularly evaluated the conduct of the Company that used video surveillance systems without having activated the guarantee procedure referred to in art. 4, par. 1 of law no. 300 of 1970, recalled by art. 114 of the Code, until the issuance of authorization by the Labor Inspectorate on April 5, 2022, and also installed cameras in areas designated as changing rooms, thus engaging in conduct that is particularly harmful to the privacy and dignity of clients and workers.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to arts. 57, par. 1, lett. f) and 83, of the Regulation, notes the unlawfulness of the processing carried out by Hotel Petrarca s.r.l. represented by its legal representative, with registered office at Piazza Roma, 23, Montegrotto Terme (PD) – C.F. 00605790286, in the terms stated in the motivation, for the violation of arts. 5, par. 1, lett. a), c), 6, 13, 30, 88 of the Regulation and 114 of the Code;

pursuant to art. 58, par. 2, lett. d) of the Regulation, orders the aforementioned Company to comply within 60 days from the date of notification of this provision, with the prescription formulated in par. 4 of this decision, while simultaneously requesting it to provide, within the aforementioned term, an adequately documented response pursuant to art. 157 of the Code; any failure to respond may result in the application of the administrative monetary sanction provided for by art. 83, par. 5, lett. e) of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation to the same Hotel Petrarca s.r.l., to pay the sum of 40,000 euros (forty thousand/00) as an administrative monetary sanction for the violations indicated in this provision.

THEREFORE INSTRUCTS

Hotel Petrarca s.r.l. to pay the aforementioned sum of 40,000 euros (forty thousand/00), according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term referred to in art. 10, par. 3, of legislative decree no. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Guarantor no. 1/2019, the publication of the injunction order on the website of the Authority;

pursuant to art. 154-bis, par. 3 of the Code and art. 37 of the Regulation of the Guarantor no. 1/2019, the publication of this provision on the website of the Authority;

pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation of violations and measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, by submitting a petition to the ordinary court of the place indicated in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE DEPUTY SECRETARY GENERAL

Filippi